

**El Paso County
Delia Briones
County Clerk**

Instrument Number: 00000000023

ma.mendez

Recorded On: 2/24/2026 10:35:27 AM

Number of Pages: 1

Examined and Charged as Follows:

Total Recording: 36.00

*****THIS PAGE IS PART OF THE INSTRUMENT*****

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY
because of color or race is invalid and unenforceable under federal law.

File Information

Document Number 00000000023
Receipt Number 1956100
Recorded Date/Time: 2/24/2026 10:35:27
 AM
Station: CCH01-CCK106



State of Texas
COUNTY OF EL PASO

I hereby certify that this instrument was FILED in the File Number sequence on the date/time printed hereon,
and was duly RECORDED in the Official Record of El Paso County, Texas.

Delia Briones
County Clerk
El Paso County, TX

Our Case No. 25-07178-FC

**APPOINTMENT OF SUBSTITUTE TRUSTEE
and NOTICE OF TRUSTEE SALE**

THE STATE OF TEXAS
COUNTY OF EL PASO

Deed of Trust Date:
December 3, 2004

Property address:
663 DANUBE DR
HORIZON CITY, TX 79928

Grantor(s)/Mortgagor(s):
ERICK D MARTINEZ, JOINED PROFORMA BY HIS WIFE,
MARISSOLA GUTIERREZ

LEGAL DESCRIPTION: Lot 3, Block 12, DESERT PALMS UNIT THREE, a subdivision in El Paso County, Texas, according to the plat thereof, recorded in Volume 79, Page 11 and 11A, Plat Records of El Paso County, Texas.

Original Mortgagee:
UNITED STATES OF AMERICA, ACTING THROUGH THE
RURAL HOUSING SERVICE, ITS SUCCESSORS AND ASSIGNS,
UNITED STATES DEPARTMENT OF AGRICULTURE

Earliest Time Sale Will Begin: 10:00 AM

Current Mortgagee:
UNITED STATES OF AMERICA, ACTING THROUGH THE
RURAL HOUSING SERVICE, ITS SUCCESSORS AND ASSIGNS,
UNITED STATES DEPARTMENT OF AGRICULTURE

Date of Sale: APRIL 7, 2026

Property County: EL PASO

Original Trustee: BRYAN DANIEL

Recorded on: December 13, 2004
As Clerk's File No.: 20040114520
Mortgage Servicer:

UNITED STATES OF AMERICA, ACTING THROUGH THE
RURAL HOUSING SERVICE, ITS SUCCESSORS AND ASSIGNS,
UNITED STATES DEPARTMENT OF AGRICULTURE

Substitute Trustee:
Resolve Trustee Services, LLC, Marinosci Law Group, PC

Substitute Trustee Address:
c/o Marinosci Law Group, P.C.
16415 Addison Road, Suite 725
Addison, TX 75001
(972) 331-2300

THIS INSTRUMENT APPOINTS THE SUBSTITUTE TRUSTEE(S) IDENTIFIED TO SELL THE PROPERTY DESCRIBED IN THE SECURITY INSTRUMENT IDENTIFIED IN THIS NOTICE OF SALE. THE PERSON SIGNING THIS NOTICE IS THE ATTORNEY OR AUTHORIZED AGENT OF THE MORTGAGEE OR MORTGAGE SERVICER.

The current Mortgagee and/or Mortgage Servicer under said Deed of Trust, according to the provisions therein set out does hereby remove the original trustee and all successor substitute trustees and appoints in their stead Resolve Trustee Services, LLC, Marinosci Law Group, PC, as Substitute Trustee, who shall hereafter exercise all powers and duties set aside to the said original trustee under the said Deed of Trust, and, further, does hereby request, authorize and instruct said Substitute Trustee to conduct and direct the execution of remedies set aside to the Mortgagee therein.

WHEREAS, default has occurred in the payment of said indebtedness, and the same is now wholly due and the owner and holder has requested to sell said property to satisfy said indebtedness

NOW, THEREFORE, NOTICE IS HEREBY GIVEN that on **TUESDAY, APRIL 7, 2026** between ten o'clock AM and four o'clock PM and beginning not earlier than 10:00 AM or not later than three hours thereafter. The Substitute Trustee will sell the property by public auction to the highest bidder for cash at the place and date specified. The sale will be conducted at the The Coliseum - 4100 East Paisano Drive, El Paso, TX, 79905 as designated by the Commissioners' Court, of said county pursuant to Section 51.002 of the Texas Property Code as amended; if no area is designated by the Commissioners' Court, the sale will be conducted in the area immediately adjacent (next) to the location where this notice was posted.

UNITED STATES OF AMERICA, ACTING THROUGH THE RURAL HOUSING SERVICE, ITS SUCCESSORS AND ASSIGNS, UNITED STATES DEPARTMENT OF AGRICULTURE, who is the Mortgagee and/or Mortgage Servicer of the Note and Deed of Trust associated with

the above referenced loan. The Mortgage Servicer is authorized to represent the Mortgagee by virtue of a servicing agreement with the Mortgagee. Pursuant to the Servicing Agreement and Texas Property code 51.0025, the Mortgage Servicer is authorized to collect the debt and to administer any resulting foreclosure of the property securing the debt.

ACTIVE MILITARY SERVICE NOTICE

Assert and protect your rights as a member of the armed forces of the United States. If you or your spouse is serving on active military duty, including active military duty as a member of the Texas National Guard or the National Guard of another state or as a member of a reserve component of the armed forces of the United States, please send written notice of the active duty military service to the sender of this notice immediately.

WITNESS MY HAND,

2-17-26

MARINOSCI LAW GROUP, P.C.

By:

SAMMY HOODA
MANAGING ATTORNEY

Beverly Mitroin
Beverly Mitroin

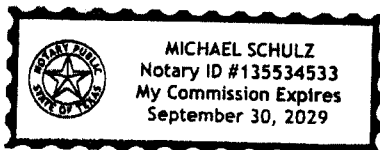
THE STATE OF TEXAS

COUNTY OF DALLAS

Before me, Michael Schulz, the undersigned officer, on this, the 19 day of Feb 2026, personally appeared SAMMY HOODA, ☐ known to me, who identified herself/himself to be the MANAGING ATTORNEY of MARINOSCI LAW GROUP PC, the person and officer whose name is subscribed to the foregoing instrument, and being authorized to do so, acknowledged that (s)he had executed the foregoing instrument as the act of such corporation for the purpose and consideration described and in the capacity stated.

Witness my hand and official seal

(SEAL)



Notary Public for the State of TEXAS

My Commission Expires: 9-30-29
Michael Schulz
Printed Name and Notary Public

Grantor: UNITED STATES OF AMERICA, ACTING THROUGH Return to:
THE RURAL HOUSING SERVICE, ITS SUCCESSORS
AND ASSIGNS, UNITED STATES DEPARTMENT OF
AGRICULTURE
3775 VENTURE DRIVE
DULUTH, GA 30096
Our File No. 25-07178

MARINOSCI LAW GROUP, P.C.
MARINOSCI & BAXTER
16415 Addison Road, Suite 725
Addison, TX 75001